Brazoria County District Court

Cause No. 2023-CV-0042

Joshua Lee, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 13, 2023
Plaintiff's counsel:	Eric Phillips, Santiago & Romero Law Group

PARTIES

Plaintiff is Joshua Lee, an individual residing in Texas, who was the driver and sole occupant of a passenger vehicle involved in the collision described below. Defendant is the automobile liabliity insuerr that issued the policy covering the at-fault vehicle and is subject to suit in Texas under the Texas Insurance Code and applicable Texas procedural rules.

FACTS

On May 17, 2023, Plaintiff was lawfully operating his vehicle on a public roadway in Pasadena, Texas. The operator of the adjacent vehicle, insured under Defendant's policy, began changing lanes into the lane Plaintiff occupied without first confirming that the lane was clear. The adjcaent vehicle struck the side of Plaintiff's vehicle, a sideswipe impact that forced Plaintiff's car toward the shoulder. Plaintiff reported the collision to Defendant promptly and provided the information requested, including a description of the vehicles and the circumstances of the impact. Plaintiff has since been required to pursue benefits and evaluation of his claim under the policy.

NEGLIGENCE

The insured driver owed a duty to other motorists to exercise ordinary care when changing lanes, including checking mirrors, signaling, and confirming that the movement could be made safely. The insured driver breached that duty by moving into an occupied lane without adequate observation, and that breach directly caused the sideswipe collision. Defendant is liable for the insured driver's negligence to the extent of the coverage afforded under its policy, and Defendant owes Plaintiff the contractual and statutory duties of good faith and fair dealing in investigating, evaluating, and paying covered claims.

DAMAGES

As a direct result of the collision, Plaintiff sustained a neck strain that has caused pain, stiffness, and limited motion, and that has required medical evaluation and treatment. Plaintiff has incurred medical expenses, lost time from ordinary activities, and physical discomfort and inconvenience. Plaintiff seeks recovery of his acutal damages udner the policy, together with statutory interest, attorney's fees as permitted by Texas law, and court costs. Plaintiff demands judgment in the amount of $138,000.00.